

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND
THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS**

STATE OF COLORADO

Case Nos. 2017-2481 & 2017-2515

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND THE CERTIFICATE TO
PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO OF MARSHALL
CAMPBELL, LPC NO. 2254, CAC II NO. 5979,**

Respondent.

**IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners ("Board") and the State Board of Addiction
Counselor Examiners (together, "Boards") and Marshall Campbell ("Respondent"), as
follows:**

**1. Respondent was licensed to practice as a professional counselor ("LPC") in the
State of Colorado on July 30, 1999, having been issued license number LPC 2254, and
is currently so licensed. Respondent was certified to practice as an addiction
counselor ("CAC II") in the State of Colorado on May 19, 2003, having been issued
certificate number CAC II 5979. Respondent's CAC II expired on August 31, 2017.**

**2. The Boards have jurisdiction over Respondent and the subject matter of this
Stipulation and Final Agency Order ("Order").**

**3. It is the intent of the parties and the purpose of this Order to provide for a
settlement of all matters arising out of the complaint in case numbers 2017-2481 and
2017-2515 without the necessity of holding a formal hearing. This Order is a full and
final resolution of case numbers 2017-2481 and 2017-2515. This Order does not
resolve any other cases, complaints, or matters, known or unknown to the Boards or
Respondent, as of the effective date of this Order.**

4. Respondent admits the following:

a. On or around April 2017, Respondent failed to maintain professional boundaries by leaving the behavioral health facility with client SB for a non-therapeutic reason on two (2) occasions.

b. Respondent's mandatory disclosure statement for SB failed to include an explanation of the levels of regulation and the differences between licensure, registration, and certification, failed to list Respondent's credentials, and referenced the State Grievance Board.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Boards find that Respondent violated §§12-43-214(1)(b)(I) and (II) and (c) and 12-43-222(1)(i) and (p), C.R.S., which state:

§12-43-214. Mandatory disclosure of information to client. (1) Except as otherwise provided in subsection (4) of this section, every licensee, registrant, or certificate holder shall provide the following information in writing to each client during the initial client contact.

(b)(I) An explanation of the levels of regulation applicable to mental health professionals under this article and the differences between licensure, registration, and certification, including the educational, experience, and training requirements applicable to the particular level of regulation;

(II) A listing of any degrees, credentials, certifications, registrations, and licenses held or completed by the licensee, registrant, or certificate holder, including the education, experience, and training the licensee, registrant, or certificate holder was required to satisfy in order to complete the degree, credential, certification, registration, or license;

(c) A statement indicating that the practice of licensed or registered persons in the field of psychotherapy is regulated by the division, and an address and telephone number for the board that regulates the licensee, registrant, or certificate holder.

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(p) Has failed to comply with any of the requirements pertaining to mandatory disclosure of information to clients pursuant to section 12-43-214.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believe are necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Boards hereby admonish Respondent for violations of §§12-43-214(1)(b)(I) and (II) and (c) and 12-43-222(1)(i) and (p), C.R.S. This Order is effective as a Letter of Admonition, set forth by §12-43-224(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within twelve (12) months of the effective date of this Order, Respondent must successfully complete twenty (20) hours of Board-approved professional continuing education ("CE") courses in the areas of ethics and boundaries. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or certification or to meet any other licensure or certification requirements.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also

acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

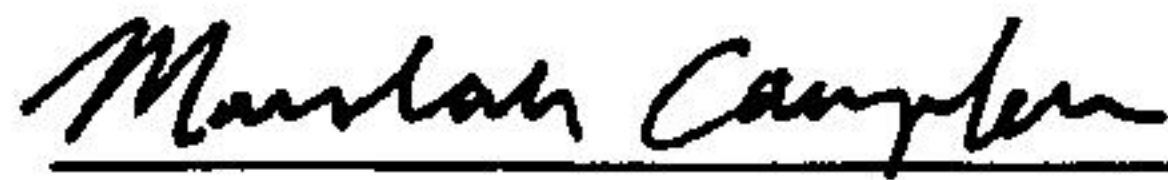
18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

19. This Order shall be admissible as evidence at any hearing held before the Boards.

20. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT



MARSHALL CAMPBELL
LPC 2254
CAC II 5979

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS AND STATE BOARD
OF ADDICTION COUNSELOR EXAMINERS



DARCIE MAGNUSON
Program Director

Effective this 27th day of July,
2018.